



Notification Waiver Determination

Respect Group – Jallarah Homes

Acquisition	Respect Group Limited (Respect) applied for a notification waiver in respect of its proposed acquisition of 100% of the business and assets owned by Jallarah Homes Inc (Jallarah), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	1 June 2026

Parties to the Acquisition	The acquirer, Respect, is a not-for-profit registered charity and unlisted public company based in Tasmania which provides residential aged care, retirement living and support at home services focused on dignity and well-being for older adults. Respect owns and operates 40 residential aged care homes and 30 retirement villages across Tasmania, New South Wales, Victoria and Queensland. The target, Jallarah, is a not-for-profit incorporated association and registered charity operating a single site residential aged care facility and co-located independent living units in Meningie, South Australia. The aged care facility has 30 beds and 5 independent living units.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no local or regional overlap between Respect and Jallarah in the supply of residential aged care and retirement living services b. the increase in national share of supply of residential aged care and retirement living services arising from the Acquisition would be small c. there are several alternative suppliers of residential aged care and retirement living services to customers in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply.

	While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**